

COMPLAINT NO.1061-19-0295

IN THE MATTER OF

ORLANDO GREENE

§ BEFORE THE TEXAS BEHAVIORAL
§ HEALTH EXECUTIVE COUNCIL
§
§ THE TEXAS STATE BOARD
§ OF EXAMINERS OF
§ PROFESSIONAL COUNSELORS

AGREED ORDER

Pursuant to the authority under §507.305 of the Texas Occupations Code, §2001.056 of the Government Code, and 22 Texas Administrative Code §884.12(e), the Executive Director for the Texas Behavioral Health Executive Council ("Council") hereby approves, ratifies, and enters this Agreed Order with the following Findings of Fact, Conclusions of Law, and Order of the Council, which have been approved and accepted by Orlando Greene ("Respondent") and which constitutes a full settlement and compromise of the complaint(s) currently pending against Respondent before the Council in the above-referenced and numbered matter(s).

FINDINGS OF FACT

1. Respondent is licensed as a professional counselor - associate (#81887) in the State of Texas and is, therefore, subject to the jurisdiction of the Council.
2. Respondent on or about December 2018, borrowed one thousand, seven hundred and four dollars (\$1,704.00) from a client to pay for a trip to Costa Rica.
3. Respondent on or about April 2019, borrowed six hundred dollars (\$600.00) from a client.
4. Respondent on or about June 2019, borrowed two hundred and fifty dollars (\$250.00) from a client.
5. Respondent on or about December 2018 thru June 2019, accepted direct payment from a client for services rendered.
6. Respondent on about December 2018 thru June 2019, failed to set and maintain professional boundaries with client and the client's family.
7. Respondent on or about June 2019, engaged in a sexual contact with a client, who received treatment beginning in September 2018. Respondent denies this allegation, number seven (7).
8. Respondent on or about June 2019, engaged in a non-therapeutic relationship with a client, which is prohibited.
9. Respondent on or about July 2019 thru May 2021, failed to submit a written report of a change of home or business address within thirty (30) days of the change.

CONCLUSIONS OF LAW

1. Respondent voluntarily received a license from the Council and, therefore, is bound by the provisions of Chapters 503 and 507 of the Texas Occupations Code and the Rules of the Council, 22 Texas Administrative Code Parts 30 and 41.
2. Violation of the Council's Rules is unprofessional conduct and constitutes grounds for the imposition of sanctions under §§503.401, 507.301, and 507.351 of the Texas Occupations Code.
3. Based on the above Findings of Fact, the Council finds that Respondent violated Council Rules 22 TAC §§681.41 (l), (m) (1)(3) (6), 681. 42(b), 882.32 (a) formerly 681.46 (c) and 681.91 (l) and (n).

ORDER

IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

1. Respondent, by signing this Agreed Order, hereby voluntarily and permanently **RESIGNS** his or her license (#81887) in lieu of further adjudication by the Council on these matters.
2. Respondent is assessed and shall pay, within one hundred and eighty (180) days of the date this order is ratified, an administrative penalty in the total amount of \$2500.00; of which \$2,000.00 represents administrative costs and \$500.00 represents administrative penalty.
3. Respondent shall return his or her license to the Council no later than fourteen (14) days after the date this order is ratified.
4. The Council will not consider an application for licensure from Respondent and Respondent agrees not to apply for any new license from the Council for ten (10) years from the effective date of this Order.
5. If Respondent seeks to apply for a license with the Council in the future, and the Council is willing to reinstate the license, Respondent will be subject to conditions of eligibility to be imposed by the Council at that time.

WARNING

RESPONDENT'S FAILURE TO COMPLY WITH ONE OR MORE TERMS OF THIS ORDER MAY CONSTITUTE A VIOLATION OF 22 TEXAS ADMINISTRATIVE CODE §884.55 REQUIRING FURTHER DISCIPLINARY ACTION.

WAIVERS

On the underlying investigative file, Respondent has waived his or her right to an informal settlement conference, a formal hearing before an Administrative Law Judge at the State Office of Administrative Hearings (SOAH), and judicial review pursuant to Texas Government Code Chapter 2001, in exchange for the conditions set out in this Agreed Order.

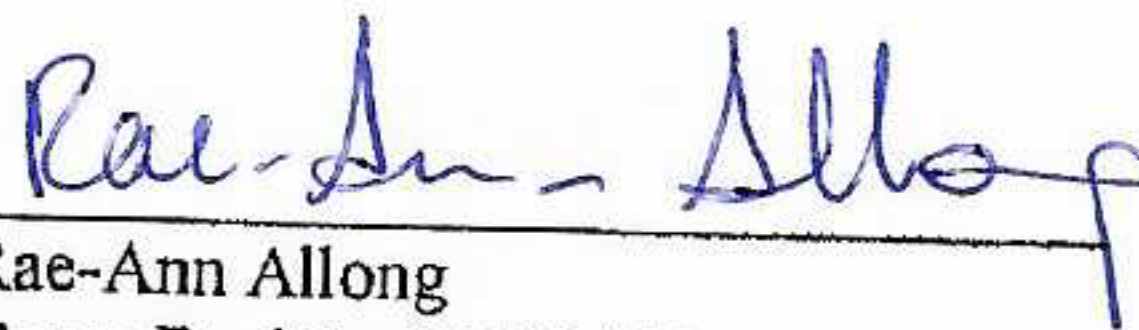
THE RESPONDENT, BY SIGNING THIS ORDER, AGREES TO ITS TERMS, ACKNOWLEDGES UNDERSTANDING OF THE FORMAL NOTICES, FINDINGS OF FACT, AND CONCLUSIONS OF LAW SET FORTH HEREIN AND COVENANTS TO SATISFACTORILY COMPLY WITH THE MANDATES OF THIS ORDER IN A TIMELY MANNER. RESPONDENT FURTHER ACKNOWLEDGES AND AGREES THAT HE OR SHE HAS AGREED TO THIS ORDER UPON THE ADVICE AND CONSENT OF COUNSEL, OR THAT HE OR SHE HAS HAD THE OPPORTUNITY TO HAVE THIS ORDER REVIEWED BY COUNSEL OF HIS OR HER CHOICE.

FOR THE RESPONDENT:



Orlando Greene
4051 Beltway Drive #104
Addison, Texas 75001

FOR THE STAFF OF THE COUNCIL:



Rae-Ann Allong
Texas Bar No. 01100400
Staff Attorney
Texas Behavioral Health Executive Council
333 Guadalupe, Ste. 3-900
Austin, Texas 78701

DATE SIGNED: 9/2/21

DATE SIGNED: 9/2/21



Darrin Dest
Attorney for Orlando Greene
Texas Bar No. 24065146

DATE SIGNED: _____

APPROVED, RATIFIED, AND ENTERED THIS 2nd DAY OF September, 2021.

A handwritten signature in blue ink, appearing to read "Darrel Spinks", written over a horizontal line.

Darrel Spinks
Executive Director
Texas Behavioral Health Executive Council